

DEPARTMENT OF VETERANS AFFAIRS

**Justification and Approval (J&A)
For
Other Than Full and Open Competition**

Acquisition Plan Action ID: 36C242-25-AP-2402

1. **Contracting Activity:** Department of Veterans Affairs, VISN 02, Station 526 James J Peters VA Medical Center

- NCO2 Contracting – James J Peters VA Medical Center
- 2237: 526-25-2-636-0500

2. **Nature and/or Description of the Action Being Approved:**

The scope of this emergency project is to get feeder 1X29 restored at the James J Peters VA Medical Center. During work to replace the racking mechanism for 1X29, when Con Edison and the vendor opened the cabinet, it was noted that both the cable and the bottles had leaks, and both had to be replaced to restore feeder 1X29. Con Edison will not restore the feeder until the work is completed due to the severity and risks associated if the cables and bottles are not replaced. Failure to replace both can lead to further electrical failures which would impact the medical center. The scope also includes the replacement of the cables and bottles for feeder 1X21. The feeders are critical in supplying power to the facility. This project will also consist of replacing feeder 1X21 cables and bottles which need to be replaced for leaking.

3. **Description of Supplies/Services Required to Meet the Agency's Needs:**

The total estimated value of this acquisition is [REDACTED]. It is roughly [REDACTED] to replace the cables and bottles for each feeder, 1X29 and 1X21. The estimated period of performance is 45 days. It takes roughly a week or two to get the feeder cables and it takes 2 weeks to get the bottles that are being replaced. This is an emergency need to restore redundancy in feeder system for the medical center. The feeders provide commercial power to the facility.

4. **Statutory Authority Permitting Other than Full and Open Competition:** 41 USC §3304(a)(5), 38 U.S. Code § 8127(c), as implemented by FAR 6.302-5 (Authorized or Required by Statute). COs may use the non-competitive (sole source) procedures authorized in [VAAR 819.7008 \(DEVIATION\)](#) or [VAAR 819.7009 \(DEVIATION\)](#)- up to \$5,000,000. Check the specific VAAR clause used below:

- (X) 819.7008 Sole source awards to a certified service-disabled veteran-owned small business;
or
() 819.7009 Sole source awards to a certified veteran-owned small business

5. **Demonstration that the Contractor's Unique Qualifications and/or Nature of the Acquisition Requires the Use of the Authority Cited Above (applicability of authority):**

The sole source award has been made to True Circuit, a SDVOSB based on the requirement in VAAR 819.7008 and under the authority of FAR 6.302-2 unusual and compelling urgency. True Circuit is a responsible source that has inherent knowledge and experience working on the delicate switchgear at the James J Peters VA Medical Center. Specific knowledge of the switchgear and its operations is critical for this work, as the switchgear is original to the facility. Most current electrical vendors do not have the experience or knowledge to work on the existing switchgear without causing concerns of a loss of power to the facility. Since most of the components of the switchgear and feeder are older, there are certain techniques that True Circuit has acquired during their tenure working on the switchgear. The feeders are critical infrastructure to providing commercial power to the facility. It is critical to have a vendor who has knowledge and has worked on the system to perform the work in order to restore the feeders and provide redundancy to the facility.

6. Description of Efforts Made to ensure that offers are solicited from as many potential sources as deemed practicable, including whether a notice was or will be publicized as required by FAR Subpart 5.2 and, if not, which exception under FAR 5.202 applies:

True Circuit is a SDVOSB with experience working on the critical feeder system at the facility. A price was immediately solicited from True Circuit once Con Edison had stated that feeder to the facility would be placed out of service until the cables and bottles were replaced. It was critical to get the feeder back in service due to the lack of redundancy at the facility. Under the authority of FAR 6.302-2 unusual and compelling urgency, a sources sought notice was not sent out. The pricing for copper in the cables has been fluctuating due to current market trends, and a quick award needs to be made to get the best price possible for the facility.

7. Determination by the CO that the Anticipated Cost to the Government will be Fair and Reasonable:

The price provided for this emergent work was deemed fair and reasonable. Historical projects, including another feeder cable and bottle replacement project was reviewed and showed fair pricing, minus any escalation for the increase of copper pricing. Engineering management also reviewed pricing to ensure it was fair and reasonable and sent their approval of the quote.

8. Description of the Market Research Conducted and the Results, or a Statement of the Reasons Market Research Was Not Conducted:

Under the authority of FAR 6.302-2 unusual and compelling urgency, Market research was not conducted because this is an emergency project to restore electrical feeders to the medical center. True Circuit is a SDVOSB with inherent knowledge of the existing antiquated switchgear and feeder system and their skillset and knowledge is crucial in replacing the feeder cables and bottles without impacting the facility further. True Circuit also has knowledge of all utilities underground where the cables need to be replaced.

9. Any Other Facts Supporting the Use of Other than Full and Open Competition:

Based on the requirements in VAAR 819.7008 an SDVOSB was selected for this emergency work on an antiquated system. The feeder system is critical infrastructure and the work needed to get the system online is emergent under the authority of FAR 6.302-2 unusual and compelling urgency.

10. Listing of Sources that Expressed, in Writing, an Interest in the Acquisition:

Multiple sources were not sought under the authority of FAR 6.302-2 unusual and compelling urgency. This is an emergency project to maintain redundancy in electrical infrastructure at the medical center. True Circuit was contacted to provide a quote immediately.

11. A Statement of the Actions, if any, the Agency May Take to Remove or Overcome any Barriers to Competition before Making subsequent acquisitions for the supplies or services required:

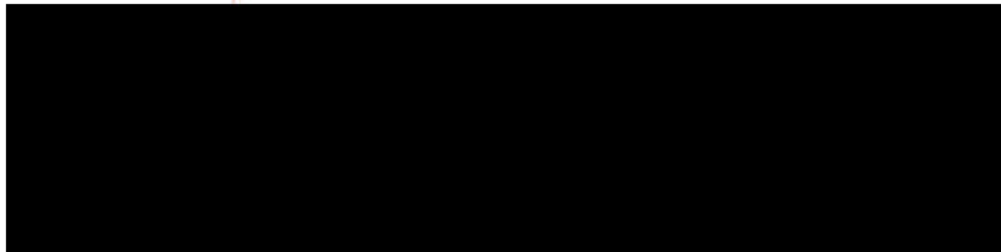
In the future, if the acquisition is not an emergency, the facility will send out a sources sought and ensure proper competition for work being completed. This sole source is being justified under the authority of FAR 6.302-2 unusual and compelling urgency due to a critical need to maintain redundancy in critical electrical infrastructure in the facility.

12. Requirements Certification: I certify that the requirement outlined in this justification is a Bona Fide Need of the Department of Veterans Affairs and that the supporting data under my cognizance, which are included in the justification, are accurate and complete to the best of my knowledge and belief.



13. Approvals in accordance with the [VHAPM Part 806.3 OFOC SOP](#):

- a. **Contracting Officer or Designee's Certification (required):** I certify that the foregoing justification is accurate and complete to the best of my knowledge and belief.



- b. **One Level Above the Contracting Officer (Required over the SAT but not exceeding \$750K):** I certify the justification meets requirements for other than full and open competition.

